

HOLLINGSWORTH VANE LLP
Attorneys at Law
555 South Flower Street, Suite 3100, Los Angeles, California

November 12, 2024

BY EMAIL AND CERTIFIED MAIL

Ms. Sylvia Brannigan, AIA
Managing Principal
VAA interiors + architecture
8420 Hayden Place
Culver City, California 90232

Re: Ardsley Financial Group — Corbin Tower headquarters, Levels 12–19
VAA Project 632588 — NOTICE OF CLAIM

Dear Ms. Brannigan,

This firm represents Ardsley Financial Group (“Ardsley”). This letter is Ardsley’s notice of claim against VAA interiors + architecture (“VAA”) arising out of VAA’s professional services on the above-referenced project.

1. The project.

VAA served as architect of record for Ardsley’s headquarters tenant improvement at Corbin Tower, Levels 12 through 19, designed in 2010 and 2011, substantial completion September 2011. The floor plate is lightweight concrete fill over composite metal deck.

2. The failure.

Beginning in the fourth quarter of 2023 and accelerating through 2024, adhered flooring on Levels 12 through 17 has failed progressively. Ardsley has experienced edge lifting, seam separation, staining, odor complaints and two employee indoor air quality grievances. Level 15 has been out of service since August 2024.

3. The forensic finding.

Ardsley retained Kestenbaum Forensic Engineering, whose report KFE-24-1188 dated October 28, 2024 is enclosed. Dr. Fenwick’s findings are that no moisture vapor mitigation of any kind exists at the slab surface, that in-situ relative humidity at depth currently measures 93.1 to 96.4 percent against an industry threshold of 85 percent for unmitigated adhered flooring, and that the assembly as constructed was never capable of performing.

4. The basis of the claim.

VAA’s own Section 09 05 61 required a two-coat epoxy moisture vapor mitigation system across Levels 12 through 19 with an acceptance threshold of 85 percent relative humidity. VAA’s testing agency measured 92 to 96 percent relative humidity in February 2011. VAA therefore knew the slab condition.

Notwithstanding that knowledge, **VAA issued for construction Finish Schedule Revision 4, dated June 3, 2011, under the seal of Roland Ashcombe, AIA, License C-24118, containing flooring assembly notes for Levels 12 through 19 that require installation over the prepared concrete substrate with no moisture mitigation of any kind.** That

document is the document Ardsley's construction file contains and the document Ardsley relied upon.

Ardsley's construction correspondence for this period did not survive its 2017 platform consolidation. Ardsley's position is based on the documents in its possession. Those documents show a design professional who identified a hazard, specified a protection against it, and then issued for construction a schedule that omitted the protection, with no explanation on the face of the record.

That is a breach of the professional standard of care.

5. Damages.

Component	Amount
Flooring removal and replacement, Levels 12–17	\$1,180,000
Abatement and indoor air quality remediation	\$412,000
Temporary relocation and business interruption	\$398,000
Consultant, testing and investigation costs	\$160,000
Total	\$2,150,000

Ardsley reserves the right to amend as remediation proceeds and as additional floors are opened.

6. Demand.

Ardsley demands payment of \$2,150,000. Please provide notice to VAA's professional liability carrier and identify defense counsel within **twenty-one (21) days** of the date of this letter. Absent a response Ardsley will proceed.

Nothing in this letter waives any right or remedy, all of which are expressly reserved.

Very truly yours,

Curtis Enbright

Curtis Enbright
Partner, Hollingsworth Vane LLP

Enclosures: Kestenbaum Forensic Engineering Report KFE-24-1188; Finish Schedule Revision 4 dated June 3, 2011

cc: Renata Silverio, Director of Risk Management, Ardsley Financial Group